

participate in arbitration and to vacate the hearing date on the motion.

3. 9:00 AM CASE NUMBER: L25-09463
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. LASHANA STARETON
*HEARING ON MOTION IN RE:
FILED BY:
TENTATIVE RULING:

Defendant LaShana Stareton (“Defendant”) filed a Motion to Quash Service of Summons on October 10, 2025 (the “Motion to Quash”). The Motion to Quash was set for hearing on November 18, 2025.

Defendant failed to give adequate notice of the motion. **Service on the opposing party was not timely done in advance of the motion hearing date.** For service by mail, the minimum notice in advance of the hearing date is sixteen (16) court days, plus five (5) additional calendar days due to service by mail. See Code Civ. Proc. § 1005 and 1013.

A Proof of Service was filed November 4, 2025, reflecting service of the Motion to Quash on Plaintiff on November 3, 2025. That was only nine (9) court days before the hearing date of November 18, 2025.

In the exercise of its discretion, the Court continued this matter to a new hearing date, as set forth below, to ensure that Plaintiff was given adequate notice of the motion. The Court issued its Order dated November 18, 2025 continuing the hearing date to December 9, 2025, which was duly served on all parties.

No opposition has been filed.

Background

Plaintiff Midland Credit Management, Inc. (“Plaintiff”) filed this action on August 25, 2025, alleging a cause of action for breach of contract to collect on an alleged unpaid account in the amount of \$11,713.30.

Analysis

Code of Civil Procedure section 418.10 sets forth a number of different procedural actions that a defendant may take on or before the last day of his or her time to plead (or as otherwise allowed by the court). See Code Civ. Proc. § 418.10(a). Among those is the filing of a motion to quash service of summons on the ground of lack of jurisdiction. *Id.* This includes where a defendant contends that service of the summons was defective. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”), § 4:413-414.

A Proof of Service was filed on September 11, 2025 (the “9/11/25 POSS”), purporting to reflect personal service upon Defendant on September 10, 2025 by a registered process server with ABC Legal Services, LLC. See 9/11/25 POSS, ¶¶ 1-5.

Defendant's Motion to Quash contends that service is defective because personal service was never done, as the papers were left on the windshield of Defendant's vehicle:

September 10, 2025 around 7:45pm I went to my car abd found the summons on my windshield

See Motion to Quash, p. 1.

The service here was done by a registered process server. See 9/11/25 POSS at ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Defendant's evidence fails to rebut the presumption of valid service arising from the 9/11/25 POSS.

The 9/11/25 POSS recites the fact of personal service, by "drop service." As long as a process server identifies themselves and tells a reluctant defendant that the defendant is being served with process and, thereafter, leaves the papers as close as possible to the defendant, service is valid. *Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 260 (personal service accomplished by placing papers under vehicle windshield wiper in plain view of the defendant after defendant refused to accept service); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 4:187.

As noted in the 9/11/25 POSS, Defendant refused to open the residence door to receive the papers, which permitted the process server to serve by placing the papers where they could be "seen by subject," presumably on the vehicle as stated by the Defendant:

5. I served the party (check proper box)

- a. ☒ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): **09/10/2025** at (time): **7:25 PM**
LASHANA I STARETON, I delivered the documents to LASHANA I STARETON with identity confirmed by subject saying yes when named. The individual tried to refuse service by not opening door and looking out blinds said she was her (documents left, seen by subject). The individual appeared to be a black-haired black female contact 35-45 years of age.

See 9/11/25 POSS, ¶5.

Defendant's one-line recitation of the fact of service by leaving the papers on her vehicle fails to persuasively demonstrate that service was not properly done and appears to strategically omit any discussion of the broader circumstances of the service attempt.

Procedurally the motion is also defective in that motion is not supported by a proper declaration signed under penalty of perjury. The one-line statement in the motion is, therefore, not admissible evidence of the lack of service sufficient to rebut the presumption of valid service.

Disposition

The Court further finds and orders as follows:

1. The Motion to Quash is DENIED.
2. Pursuant to Code of Civil Procedure section 418.10(b), Defendant shall file and

serve a responsive pleading, such as an Answer, within **fifteen (15) days** after notice of entry of this order.

4. 9:00 AM CASE NUMBER: MSL17-02911
CASE NAME: MERCHANTS ACCEPTANCE VS SMITH
***HEARING ON MOTION IN RE: VACATE DEFAULT JUDGMENT**
FILED BY:
TENTATIVE RULING:

Defendant and judgment debtor Senekeya Smith (“Defendant”) filed a Motion to Vacate Default Judgment on November 7, 2025 (“Motion to Vacate Default Judgment”). The Motion to Vacate Default Judgment was set for hearing on December 9, 2025. The motion is opposed.

Background

Plaintiff and judgment creditor Merchants Acceptance Corporation (“Plaintiff”) filed a Complaint on July 21, 2017.

A Proof of Service of Summons was filed January 18, 2018 (the “1/18/18 POSS”). The 1/18/18 POSS reflects service on Defendant by **substitute service on August 8, 2017**, at 7:44 pm by delivery to a “JOHN DOE” who was described as a “CO-OCCUPANT.” 1/18/18 POSS at ¶¶3-5.

4. Address where the party was served:
349 FOXGLOVE STREET
PITTSBURG, CA 94565

5. I served the party

b.by substituted service. On (date): 08/08/17 at (time): 07:44 PM I left the documents listed in Item 2 with or in the presence of
(name and title or relationship to person indicated in item 3):
“JOHN DOE”
MALE AFRO-AMER 40 YRS 6’01” 190 LBS
CO-OCCUPANT

1/18/18 POSS, ¶¶4-5. The service was done by a registered process server. *Id.* at ¶7.

A default was entered against Defendant on February 15, 2018 (the “Default”). Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on March 13, 2018 (the “Default Judgment”) in the amount of \$2,821.76.

Defendant filed the Motion to Vacate Default Judgment in November 2025. The motion is supported by the Declaration of Senekeya Smith filed November 7, 2025 as part of the motion papers (the “Supporting Declaration”).

Plaintiff filed its Opposition to Defendant’s Motion to Vacate Default Judgment (the “Opposition”) on November 25, 2025. The Court notes that although the Opposition makes various factual averments, it was not supported by any proper declaration. The